

**IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT**

Musharraf Rasool Cyan and others	Versus	Lawrence College's President, Board of Governors/ Governor of Punjab, Lahore and 09 others
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Date of Hearing:	03.02.2026
Petitioners by:	Barrister Zafarullah Khan ASC with Senator Barrister Sadia Abbasi ASC, Mian Muhammad Ajmal Pervez, Malik Saqib Mehmood Kahlid, Swim Raja and Muhammad Talib Shahzad, Advocates.
Respondents by:	M/s. Malik Amjad Ali, Additional Advocate-General, Muhammad Irshad and Barrister Raja Hashim Javed, Assistant Advocates-General. Barrister Zain Mansoor, Assistant Attorney General. Ch. Muhammad Yaqoob, Advocate for the Respondent No.10/Principal, Lawrence College Murree with Syed Haider Ali Shah, Advocate. Mr. Waqar Asad Khan, Assistant Director, Law HED and Waqas Ali, Assistant Law Officer, HED.

(I) OVERTURE OF THE CASE

2. This judgment will examine the Provisions of the Punjab Educational Institutions (Reconstitution) Act, 2021 (the “Act”) regarding

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removal/appointment of certain Members of the Board of Governors of the Lawrence College Murree (the “**Board**”). This Act was enacted to reconstitute certain educational Institutions in the Punjab to improve their governance and management by providing academic, financial and administrative autonomy aiming at enhancing quality of education in the Punjab. The educational Institutions are defined under Section 2(c) of the Act and following Institutions are listed in the Schedule.

1. The Aitchison College, Lahore (*in Central Punjab*)
2. The Sadiq Public School, Bahawalpur (*in South Punjab*)
3. The Lawrence College, Ghora Ghali Murree (*in North Punjab*)
4. Chenab Colleges established under the Jhang Educational Trust, Jhang.

Emphasis added

3. The Lawrence College, Ghora Gali, Murree (the “**College**”) was established in 1860 and named after **Sir Henry Montgomery Lawrence**. This College is one of the Pakistan's oldest and most prestigious boarding institutions. It is a boys’ boarding school located in the Murree Hills, Punjab, at a height of about 1950 meters (6395 feet) above sea level, covering an area of 100 acres. The College follows a public school model influenced by British colonial-era institutions and provides education from primary to higher secondary levels. The College was founded in 1860 for the orphans of British soldiers and named after Sir Henry Lawrence, the first administrator of British Punjab. The total strength of the College had increased to 171 and over the years, it evolved from a charitable asylum into a leading public educational institution in Pakistan.

(II) PRELUDE OF THE CASE

4. The Petitioners through this writ Petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”) have impugned the Notifications dated 12.07.2024; 19.07.2024 and 22.07.2024; issued by the Respondent No.2/Secretary, Higher Education Department, Government of the Punjab, Lahore by the order of the President,

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Board of Governors/Governor of the Punjab; whereby a new Board of Governors of the Lawrence College Murree was notified after removing the Petitioners' names, without due process.

5. Earlier, in the connected W.P. No.2060 of 2024, on the same subject, the Petitioners/Lt. Col. (R) Mumtaz Khan and others have impugned the Notification dated 02.07.2024, issued by the Respondents No.1/President, Board of Governors/Governor of the Punjab, whereby they have been removed as Members of the Board of Governors of the Lawrence College Murree.

6. However, two other writ Petitions i.e. W.Ps. No.1898 of 2024 and 2137 of 2024, challenging the extension in the contractual employment period of the individuals holding the position of Principal of the Lawrence College Murree have already been disposed of.

7. This Court, through this detailed judgment, has addressed the matter concerning the appointment of the Principal of the College, while consciously refraining from any unwarranted interference in the internal administration of the institution. The purpose of this adjudication is to ensure that the governance and management of the College are improved in accordance with law and in the true spirit of the Preamble of the Act. Consequently, these petitions are partly **allowed** with certain modification in the Notifications, to the extent that the names of the Petitioners (who were removed without due process) shall be included/reinstated in the current Board, whereas the remaining reliefs sought stand declined.

(III) PETITIONERS' SUBMISSIONS

8. Barrister Zafarullah Khan, ASC with Senator Barrister Sadia Abbasi, ASC submitted that the Petitioners were appointed Board under the Act and could not be removed before the expiry of stipulated period i.e. 3 years under Section 7(2) of the Act. For ready reference Section 7(2) *ibid* reads as follows:

- 7. Powers and duties of President.**— (1) *The President or his nominee shall preside at the meetings of the Board.*
(2) *The President may remove any person from the membership of the Board if such person:*
(a) *has become of unsound mind; or*

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- (b) *has been incapacitated to function as member of the Board; or*
- (c) *has ceased to hold the position, office or qualification which was pre-requisite for his nomination or appointment as a member of the Board; or*
- (d) *has been convicted by a court of law for an offence involving moral turpitude; or*
- (e) *has failed to attend three consecutive meetings of the Board.*

Further submitted that the Respondents have issued the impugned notifications regarding removal of the Members of Board of Governors without providing them right of hearing which clearly violates the provision of Section 7(3) of the Act, which states that:

- 7. Powers and duties of President.**– (1) ...
- (2) ...
- (3) *An order for removal of a member of the Board under subsection (2) shall not be passed unless the person to be affected thereby is afforded an opportunity of being heard.*

Further argued that Article 4 of the Constitution clearly states that it is the Petitioners' inalienable right to be treated in accordance with law by the Respondents and no action detrimental to the reputation, life and liberty shall be taken except as per law. He maintained that Article 10-A of the Constitution provides right of fair trial and due process for determination of rights and obligations but the Respondents have issued the impugned Notifications without providing fair right of audience to the Petitioners. Hence, all the steps taken by the Respondents go against the welfare of the College, which holds an excellent reputation in the field of *academia*. Learned counsel in support of their arguments placed reliance on the judgments reported as “Dr. Zahid Javed versus Dr. Tahir Riaz Chaudhry and others” (PLD 2016 SC 637) (Full Bench), “Rana AAMER RAZA ASHFAQ and another versus Dr. MINHAJ AHMAD KHAN and another” (2012 SCMR 06), “ALI IRTAZA KHAN Versus PRINCIPAL, LAWRENCE COLLEGE GHORA GALI, MURREE and another” (1994 MLD 2452) and “Professor Dr. MUHAMMAD NAEEM KHAN Versus FEDERATION OF PAKISTAN”

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through Secretary, Ministry of Kashmir Affairs and Gilgit-Baltistan and others” (2023 MLD 1273).

(IV) RESPONDENTS’ SUBMISSIONS

9. Conversely, Barrister Raja Hashim Javed, Assistant Advocate-General with Waqar Asad Khan, Assistant Director Law, High Education Department, Government of the Punjab, Lahore; unanimously objected to the maintainability of this Petition on the ground that the Respondents have taken all the aforesaid steps/actions directly under **Article 105** of the Constitution because the Board of Governors was constituted with the consent and advice of the Chief Minister. For ready reference Article 105 reads as follows:

Governor to act on advice, etc

105. (1) Subject to Constitution, in the performance of his functions, the Governor shall act [on and] in accordance with the advice of the Cabinet [or the Chief Minister]

[Provided that [within fifteen days] the Governor may require the Cabinet or, as the case may be, the Chief Minister to reconsider such advice, whether generally or otherwise, and the Governor shall [within ten days,] act in accordance with the advice tendered after such reconsideration.]

(2) The question whether any, and if so what, advice was tendered to the Governor by the Chief Minister [or the Cabinet] shall not be inquired into in, or by, any court, tribunal or other authority.

(3) Where the Governor dissolves the Provincial Assembly, notwithstanding anything contained in clause (1), he shall,—

(a) appoint a date, not later than ninety days from the date of dissolution, for the holding of a general election to the Assembly; and
(b) appoint a care-taker Cabinet.]

(5) The provisions of clause [(2) of Article 48 shall have effect in relation to a Governor as if reference therein to "President" were reference to "Governor".]

Malik Amjad Ali, Additional Advocate-General also objected to the maintainability of this Petition and in support of his arguments relied on the judgment of this Court reported as “TAHIR RIAZ CHAUDHRY Versus CHANCELLOR, UNIVERSITY OF THE PUNJAB, LAHORE and 3 others” (PLD 2013 Lahore 476); and stated that the Petitioners including Senator Barrister Sadia Abbasi and others were appointed through Notification dated 09th June, 2023; **without the advice** of the Chief Minister; hence, Section 7(2) of the Act is not applicable in this case. He further stated that through the

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Notifications dated 12th July, 2024; 19th July, 2024; and 22nd July, 2024; the Petitioners have been appointed **with the advice** of the Chief Minister by the Secretary, Higher Education Department, Government of the Punjab, Lahore; by the order of the Respondent No.1/Governor, in which the Senator Barrister Sadia Abbasi is also included as Member of the Board of Governors alongwith its **non-official Members** and **EMINENT ALUMNI** i.e. Mr. Sarfraz Bugti, Mr. Ajmal Gondal; Mr. Taimoor Sial; Mr. Ikram-ul-Majeed Sehgal; Lt. General (Retd.) Hamid Rabnawaz; Maj. General (Retd.) Omer Burki; Maj. General (Retd.) Owais Mushtaq Qureshi; Rear Admiral (Retd.) Mian Zahir Shah (Retd.); Brig. (Retd.) Asmat Ullah Khan Niazi, Lt. Col. (Retd.) Ikramullah Khan Babar; and Lt. Col. (Retd.) Mumtaz Khan.

10. Malik Amjad Ali, Additional Advocate-General further submitted that the aforesaid Notifications have been issued by the Respondent No.2/Secretary, Higher Education Department, Government of the Punjab, by the orders of the Respondent No.1/Governor, being the **official head** of the Department. Added that Rule 10 of the Punjab Government Rules of Business, 2011 (the “Rules of Business”) clearly states that the Secretary is the official head of the Department and is responsible for its efficient administration and discipline, for the conduct of business assigned to the Department and for the observance of laws and rules, as held by the Supreme Court of Pakistan in Messrs Mustafa Impex, Karachi and others versus Government of Pakistan through Secretary Finance, Islamabad and others (PLD 2016 SC 808) by holding that the Rules of Business flowed from the Constitution is mandatory and binding on the Government. Further added that this Court has also strengthened the role of Secretary in the recent judgment passed in the case cited as PIA Officers Cooperative Housing Society Limited versus Province of Punjab etc. (2024 CLC 947) and the judgment reported as “Adnan Arif versus Province of Punjab, etc.” (2025 CLC 550) [Lahore High Court (Rawalpindi Bench)], wherein it has been held that:

5. Here in this case, Rules 3 and 10 of the Punjab Government Rules of Business, 2011 (the “Rules”) are relevant.

Under Rule 3(3) of the Rules, business of the Government has been distributed amongst several Departments in the manner indicated in the Second Schedule and functions of the Secretary are described under Rule 10 of the 2011 Rules, which is reproduced hereunder for ease of the matter:-

“10. Functions of the Secretary.–

...

This Court, while interpreting the aforesaid provisions of the Rules first time has given verdict regarding responsibilities and functions of the heads of government departments in the case of PIA Officers Cooperative Housing Society Ltd. through President versus Province of Punjab through Secretary to the Government of Punjab, Cooperatives Department, Lahore and 4 others (2024 CLC 947) by holding that the Secretary, being official head of the department, is responsible for its efficient administration and discipline, for the conduct of business assigned to the department and for the observance of laws and rules. This concept has subsequently been further strengthened by this Court in another case cited as Muhammad Banaras versus Government of the Punjab etc. (PLJ 2024 Lahore 242).

(V) DETERMINATION BY THE COURT

(a) Anthropology of the case

11. This Court seeks guidance from the **Preamble** of the Act, which provides educational institutions to improve their governance and management by providing administrative autonomy enhancing the quality of education. The **Board** is established under Section 4 of the Act, in which the management and control of the institution/College vests with the Board, while its power and functions are provided under Section 5 of the Act. The Board appoints the **Principal** under Section 5(1)(f) of the Act by constituting a **Management Committee** under Section 5(1)(i) of the Act. Whereas the Powers and Duties of the Management Committee are provided under Section 11

of the Act, which recommends the name of the suitable candidate for appointment of the Principal of the institution. It is to be noted here that Section 6 of the Act, deals with the Business of the Board and recommendation of name of the Principal of the “College”. For ready reference Section 6 reads as follows:

6. Business of Board.—(1) *The Board shall meet at least thrice a year at such times as the President may, on his own motion or on the recommendation of the Principal, require and the Board shall transact its business in the meetings in such manner as may be prescribed through regulations and until so prescribed, as may be determined by the Board.*

(2) *One third of the total members of the Board or three members of the Board, whichever is higher, shall constitute the quorum for a meeting of the Board.*

(3) *All questions at a meeting of the Board shall be decided by a majority of votes of the members present and voting, and in case of equal votes, the President shall have the casting vote.*

(4) *The provisions of this section shall apply mutatis mutandis to meetings of the Management Committee and of any other Committee constituted by the Board.*

(5) *The Principal shall be the Secretary to the Board, and other Committees constituted by the Board shall appoint their own Secretaries, and it shall be the duty of a Secretary to keep and record the proceedings of a meeting in a minute-book.*

12. When confronted to learned Law Officer, whether the Respondent No.1/Governor of the Punjab / President, Board of Governors has taken advice from the Chief Minister in the light of the judgment of the Supreme Court reported as (**PLD 2016 SC 637**), he sought time to obtain fresh instructions from the concerned quarter and to file detail report in this regard.

(b) *Appointment of Principal*

13. In order to resolve the controversy in hand, the Respondent No.2/Secretary, Higher Education Department, Government of the Punjab, Lahore, was directed to appear in person alongwith acting Principal of the “College” and apprise the Court on the issue in hand. Thereafter, vide order dated 07.02.2025, the Respondents were directed to hold the Board’s meeting in accordance with law for the appointment of the **Principal** as advertised and

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to submit a report along with the minutes of the meeting. For ready reference the aforesaid order is reproduced as under:

*Pursuant to the order dated 14.01.2025, Dr. Farrukh Naveed, Secretary, Higher Education Department, Government of the Punjab, Lahore appeared alongwith Muhammad Arshad Iqbal Ch. Acting Principal, Lawrence College, Ghora Gali, Murree (the “College”); and submitted that vide Notifications dated 12th July, 2024 and 22nd July, 2024; issued by him by the order of Respondents No.1/President, Board of Governors/Governor Punjab; Board of Governors of the “College” was appointed. He stated that the Management Committee is to be constituted by the Board, which has the under Section 5(1)(i) of the Act. Whereas the Powers and Duties of the Management Committee are provided under Section 11 of the Punjab Educational Institutions (Reconstitution) Act, 2021 (the “Act”). Added that Section 6 of the Act, deals with the Business of the Board and recommendation of name of the Principal of the “College”, which is still going on through an **advertisement**, dated 26.12.2024 (annexed with C.M. No.22 of 2024). Therefore, seeking guidance from the order of this Court dated 14.01.2025, the Principal is Secretary of the Board under Section 6 *ibid*. Therefore, the Acting Principal will convey in writing to the Respondents No.1/President, Board of Governors/Governor Punjab to proceed with the meeting of the Board for appointment of the “Principal”. Hence, sought time in this regard.*

2. At this stage, learned counsel for the Petitioners with Senator Barrister Sadia Abbasi, ASC submitted that the Respondents are not convening Board’s meeting regularly, which violates the provisions of Section 6 of the Act. For ready reference Section 6 reads as follows:

6. Business of Board.—(1) The Board shall meet at least thrice a year at such times as the President may, on his own motion or on the recommendation of the Principal, require and the Board shall transact its business in the meetings in such manner as may be prescribed through regulations and until so prescribed, as may be determined by the Board.

(2) One third of the total members of the Board or three members of the Board, whichever is higher, shall constitute the quorum for a meeting of the Board.

(3) All questions at a meeting of the Board shall be decided by a majority of votes of the members present and voting, and in case of equal votes, the President shall have the casting vote.

(4) The provisions of this section shall apply *mutatis mutandis* to meetings of the Management Committee and of any other Committee constituted by the Board.

(5) The Principal shall be the Secretary to the Board, and other Committees constituted by the Board shall appoint their own

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Secretaries, and it shall be the duty of a Secretary to keep and record the proceedings of a meeting in a minute-book.

Learned counsel for the Petitioners in support of his arguments placed reliance on the judgments reported as “Dr. Zahid Javed versus Dr. Tahir Riaz Chaudhry and others” (PLD 2016 SC 637) (Full Bench), “THE CHAIRMAN, DISTRICT SCREENING COMMITTEE, LAHORE AND ANOTHER versus SHARIF AHMAD HASHMI” (PLD 1976 SC 258).

3. *In view of above, the Respondents shall proceed with the meeting of the Board strictly in accordance with the Act to appoint the Principal accordingly; as per advertisement dated 26.12.2024 (Annexed with C.M. No.22 of 2024); and submit their report alongwith minutes of meeting of the Board, if any.”*

(c) *Meeting of the Board*

14. On 25.02.2025, it was noted that in compliance of the Court’s order dated 07.02.2025, a meeting of the Board of Governors of Lawrence College, Murree was held on 24.02.2025, chaired by the **Governor of Punjab**. The Board discussed the appointment of the new Principal, emphasizing that the **scrutiny and shortlisting process** should be carried out carefully and not in haste, allowing sufficient time to the Management Committee. Learned counsel for the Respondent/College informed the Court that the process is underway in accordance with the Act, and sought more time. However, Senator Barrister Sadia Abbasi, ASC raised reservations regarding the constitution of the Board of Governors. The case was adjourned to 07.04.2025, with directions to the parties to file written arguments and it was ordered that the appointment of the Principal would remain subject to the final outcome of the writ petition. For ready reference the order dated 25.02.2025, reads as follows:

At the outset, Ch. Muhammad Yaqoob, Advocate for Respondent No.10/Lawrence College, Murree (the “College”) has submitted that in compliance of order of this Court dated 07.02.2025, a meeting of the Board of Governor of the College was held at 1400 hours on Monday, the 24th February, 2025; which was attended by the following:

- i. **Sardar Saleem Haider Khan, The Governor of Punjab, President Board of Governors.**
- ii. **Mr. Muhammad Ajmal Gondal, Auditor General of Pakistan.**

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- iii. **Mir Sarfraz Ahmed Bugti, C.M. Balochistan**
- iv. **Mr. Ikram-ul-Majeed Seghal**
- v. **Prof. Dr. Syed Habib Ali Bukhari, VC Kohsar University Murree.**
- vi. **Mr. Saleem Asghar Ali**
- vii. **Lt. Gen. Hamid Rab Nawaz (Retd.)**
- viii. **Maj. Gen. Ovais Mushtaq Qureshi (Retd.)**
- ix. **Maj. Gen. Umar Farooq Burki (Retd.)**
- x. **Mrs. Sadia Abbasi** (via Zoom link)
- xi. **Mrs. Nasreen Iqbal**
- xii. **Mr. Naveed Ikhlas**
- xiii. **Mr. Taimur Tashkeen Sial**
- xiv. **Dr. Raja Muhammad Shafique Sarwar**
- xv. **Dr. Sajjid Hussain Khichi**
- xvi. **Prof. Dr. Faisal Saud Dar**
- xvii. **Lt. Col Ikramullah Khan Babar (Redt.)**
- xviii. **Mr. Muhammad Azeem ul Haq Minhas**
- xix. **Mr. Muhammad Ali Baloch**
- xx. **Eng. Aamir Khattak Commissioner RWP, Division.**
- xxi. **Dr. Nauman Jameel, Addl Secy (Board), HED, Punjab.**
- xxii. **Mr. Umer Javed, Addl. Sec. Finance**
- xxiii. **Mr. Muhamamd Arshad Iqbal Ch. Acting Principal LCGG, Member/Secretary Board of Governors.**

A copy of the report of the said meeting has been produced by learned counsel for the Respondent No.10/College, which is taken on record. The relevant paragraph of the aforesaid report is reproduced as under:

“6. Discussing the procedure for appointment of the new principal, some of the Board members emphasized on the point that scrutiny and shortlisting of the applicants, in order to forward names of three shortlisted candidates to the Board of Governors for final selection, requires a careful process and is not to be completed in a hasty manner. They suggested that the Management Committee of the Board needs sufficient time in order to complete this process. Other members of the Board also reiterated that the Management Committee may be given ample time for the said task.”

Learned counsel for the Respondent No.10/College informed that the process for the appointment of the Principal of the College, is in progress strictly in accordance with the provisions of the Punjab Educational Institutions (Reconstitution) Act, 2021 (the “Act”), therefore, they sought some more time in this regard.

2. However, Senator Barrister Sadia Abbasi, ASC, submitted that although she attended the aforesaid meeting online through

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a Zoom link but still she has reservations because the main dispute is regarding the removal or establishment of the Board of Governors of the College.

3. Re-list on 07.04.2025. Learned counsel for the parties shall file their written arguments. However, the appointment of the Principal of the College shall be subject to the final outcome of this writ Petition.

15. On 07.04.2025, the Court was informed that despite earlier proceedings, no suitable candidate for the post of Principal of College was found and a fresh advertisement dated 08.03.2025 was issued. During the hearing, the names of newly appointed Members of the Board of Governors were also incorporated as Respondents No.10 to 24. The Petitioners, through Barrister Zafarullah Khan and Senator Barrister Sadia Abbasi, ASC, contended that their removal from the Board was made without due process and right of hearing, in violation of Section 7(2) & (3) of the Act 2021 and Articles 4 and 10-A of the Constitution. For ready reference the order dated 07.04.2025, reads as follows:

Pursuant to the orders dated 14.01.2025, 07.02.2025 and 25.02.2025, Ch. Muhammad Yaqoob, Advocate for Respondent No.10/Lawrence College, Murree (the "College") has submitted that till date no suitable candidate for the post of Principal could be found, therefore, another advertisement has been issued for the purpose on 08th March, 2025 in newspaper daily Jang. Hence, sought some more time. He has made available copy of the said advertisement, which is taken on record.

2. At this stage, learned counsel for the Petitioner, with permission of the Court, has incorporated the names of newly appointed Members of the Board of Governors of the College, as Respondents No.10 to 24, with red ink.

3. Barrister Zafarullah Khan, ASC with Senator Barrister Sadia Abbasi, ASC submitted that the Petitioners were appointed Members of the Board of Governors of the "College" under the Punjab Educational Institutions (Reconstitution) Act, 2021 (the "Act") and could not be removed before the expiry of stipulated period i.e. 3 years under Section 7(2) of the Act. For ready reference Section 7(2) ibid reads as follows:....

Further submitted that the Respondents have issued the impugned notifications regarding removal of the Members of Board of Governors without providing them right of hearing which clearly violates the provision of Section 7(3) of the Act, which states that:

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Further argued that Article 4 of the Constitution clearly states that it is the Petitioners' inalienable right to be treated in accordance with law by the Respondents and no action detrimental to the reputation, life and liberty shall be taken except as per law. He maintained that Article 10-A of the Constitution provides right of fair trial and due process for determination of rights and obligations but the Respondents have issued the impugned Notifications without providing fair right of audience to the Petitioners. Hence, all the steps taken by the Respondents go against the welfare of the "College", which holds an excellent reputation in the field of academia.

4. When confronted, learned Law Officer seeks some time to have fresh instructions. Let him do so.

16. On 03.06.2025, it was noted that multiple orders had earlier been passed for the welfare of College. The College's counsel informed that the Management Committee held a meeting on 26.05.2025 and shortlisted candidates for the post of Principal, with final interviews to be completed by 30.05.2025. The main issue, however, concerns the **appointment and removal of Members of the Board of Governors**. The **Petitioners' counsel** argued that the Petitioners, appointed under Section 7(2) of the Act 2021, were unlawfully removed before completion of their three-year term. The Secretary, Higher Education Department stated that a summary will be sent to the Governor through the Chief Minister for resolution of the issue. The Court directed that this be done in accordance with law and a report be submitted on the next date of hearing. For ready reference the order dated 03.06.2025, reads as follows:

It is noted that for the welfare of the Respondent No.10/Lawrence College, Murree (the "College"), this Court passed various orders i.e. dated 14.01.2025, 07.02.2025, 25.02.2025, 07.04.2025 and 05.05.2025.

2. Today, Ch. Muhammad Yaqoob, Advocate for the College has made available copy of the letter dated 29.05.2025, which shows that meeting of the Management Committee of the Board of Governors of the College was held on 26th May, 2025 for the selection of Principal. The Committee has shortlisted some candidates for final interview. He further stated that this exercise will hopefully be done before 30th May, 2025. Hence, sought time in this regard. Let them do so.

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3. It is noted that the basic issue involved in this case is regarding the issuance of notifications for appointment/ removal of the Members of the Board of Governors of the College.

4. Barrister Zafarullah Khan, ASC with Senator Barrister Sadia Abbasi, ASC submitted that the Petitioners were Members of the Board of Governors of the “College” under the Punjab Educational Institutions (Reconstitution) Act, 2021 (the “Act”) and could not be removed before the expiry of stipulated period i.e. 3 years under Section 7(2) of the Act. But through the impugned Notifications certain new Members have been appointed/re-appointed. Added that in compliance of order of this Court dated 07.02.2025, a meeting of the Board of Governor of the College was held at 1400 hours on Monday, the 24th February, 2025; which was attended by 23 Members. He prayed that the Petitioners’ names be included as Members in the Board of Governors, who are Lt. Col. Mumtaz Khan (Retd.), Brig. Asmat Ullah Khan Niazi (Rtd.), Kashif Mateen Ansari, Javed Sadiq Malik, Musharaf Rasool Cyan and Hassan Farooq Meyer.

5. When confronted; Dr. Farrukh Naveed, Secretary, Higher Education Department, Government of the Punjab, Lahore; submitted that they will send the summery to the Governor Punjab through Chief Minister for resolution of the matter to include the Petitioner’s name in the Board of Governors. Let them do so in accordance with law and the procedure; and submit their report on the next date of hearing.

17. On 01.07.2025 and 19.08.2025, the Court was informed that the **Board** has appointed **Brig. (Retd.) Jawad Ahmed Zaka, SI(M)** as **Principal** for three years, vide **Notification dated 18.08.2025**, in compliance of earlier Court orders. The Law Officer stated that a **summary for inclusion of the Petitioners as Board Members** had been moved under Section 4(1)(g) of the Act 2021, but final approval from the **Cabinet Division** was awaited. At that point of time, **Senator Barrister Sadia Abbasi, ASC** pointed out that although the Petitioners’ names appeared on the College website as **Eminent Alumni**, but without any official notification. The **Law Officer and Bursar** were granted time to submit a fresh report. For ready reference order dated 19.08.2025, reads as follows:

At the outset, learned Law Officer submitted that in compliance of the orders passed by this Court, Board of Governors, Lawrence College, Ghora Gali, Murree (the “Board”) in its meeting dated 26.06.2025 in terms of Sections 5(f) and 11(1) of

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the Punjab Educational Institutions (Reconstitution) Act, 2021; has appointed Brig. (Retd) Jawad Ahmed Zaka, SI(M) as Principal of the Lawrence College, Ghora Gali, Murree (the "College") for a period of three years, vide Notification No.GS(UNIV-III)31-6/2025-332, dated 18.08.2025. Copy of the said Notification has been taken on record. Learned Law Officer also pointed out that a summary to consider inclusion of the Petitioners as Member(s) of the Board has also been moved in terms of Section 4(1)(g) of the Act but final approval thereof from the Cabinet Division will take some time. He seeks adjournment in this regard.

2. In response thereof, Senator Barrister Sadia Abbasi, ASC submitted that although the website of the College (<https://lawrencecollege.edu.pk>) shows the Petitioners names in Governing Body as Eminent Alumni; but no proper Notification is in the field.

3. Learned Law Officer and BURSAR of the College sought time to submit fresh report in the aforesaid manner. Let them do so.

18. On 02.12.2025, the Court was informed by the learned Law Officer that a summary regarding the reconstitution/approval of the members of the Governing Body had been initiated and forwarded to the competent forum but certain administrative formalities were still pending. The Court directed the concerned authority to complete all requisite formalities and do the needful within one week, and compliance report be submitted on the next date of hearing.

(d) Inclusion of the Board Members, not notified.

19. On 23.12.2025, the learned Law Officer, on instructions from the Higher Education Department, informed that the summary/file, after removal of objections, had been forwarded to the office of the Chief Minister for further necessary action. The Court directed its office to transmit attested copies of previous orders to the Respondent No.2, for onward forwarding them to the Chief Minister's office to ensure that all directions previously issued by the Court were properly communicated and brought to the notice of the competent authorities.

20. It was observed that the conduct of the Respondents clearly reflects that the Petitioners were de-notified without following the mandatory procedure

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prescribed under **Section 7(3)** of the Act 2021, which requires providing of an opportunity of hearing prior to removal. Moreover, under **Section 4(2)** of the said Act, the tenure of Members of the Board is fixed for **three years**, which has not been duly observed in this case. Moreover, Article 4 of the Constitution clearly states that it is the inalienable right of every citizen to be treated in accordance with law by the Respondents and no action detrimental to the reputation, life and liberty shall be taken except as per law. Furthermore, Article 10-A of the Constitution provides right of fair trial and due process for determination of rights and obligations but the Respondents have issued the impugned Notifications without providing fair right of audience to the Petitioners. The intent of the law has, therefore, been disregarded by the Respondents, who continued to seek time without lawful justification. They have also overlooked the dictum laid down by the Hon'ble Supreme Court of Pakistan in the judgment reported as **(PLD 2016 SC 637)** (Full Bench), wherein it has been held that:

Therefore, the functions of Governor in terms of Article 105(1) would be distinct from the functions of the Governor, which he has to discharge in terms of Article 101(5) of the Constitution. Both these provisions of the Constitution are independent of each other and mutually exclusive. There are other provisions of the Constitution which confer powers on the Governor to exercise his discretion without seeking advice of the Chief Minister/or act on the directives of the President.

21. It was further noted that on 03.06.2025, when Barrister Zafarullah Khan, ASC again requested inclusion of the Petitioners — namely **Musharaf Rasool Cyan, Lt. Col. (Retd.) Mumtaz Khan, Brig. (Retd.) Asmat Ullah Khan Niazi, Kashif Mateen Ansari, Mrs. Sadia Abbasi, Javed Sadiq Malik**, and **Hassan Farooq Meyer** — as Members of the Board of Governors; the Secretary, Higher Education Department had assured that a summary would be sent to the Governor of Punjab through the Chief Minister for resolution of the matter. It was also recorded that the Petitioners' names had been displayed on the College's official website. However, no progress was made, whereupon, the **Chief Secretary, Government of the Punjab**,

being the administrative head of the Cabinet under Rule 9 of the Rules of Business was directed to **do the needful within seven (07) days**; failing which, this Court would proceed to decide the matter on merits, with particular reference to the violation of Section 7(3) of the Act, 2021, and Articles 4 and 10-A of the Constitution.

22. The foremost consideration which remained before this Court throughout the pendency of these proceedings is the **welfare, stability and efficient administration of the Lawrence College, Murree**. The Court has been conscious of the fact that any delay in resolving administrative issues concerning the governance structure of such an eminent educational institution could adversely affect its functioning, academic performance and reputation. Accordingly, this Court has endeavored at every stage to ensure that the College may continue to operate smoothly and that no vacuum in leadership or governance may be allowed to persist.

23. It is important to mention here that it is well settled principle that the Constitutional Courts should refrain from interfering in the internal administration and management of educational institutions, particularly in matters falling within the exclusive authority of statutory bodies or governing boards constituted under the applicable law. Guidance is sought from the judgment of the Hon'ble Supreme Court of Pakistan reported as **(PLD 2016 SC 637)** wherein it has authoritatively been held that the autonomy of educational institutions is to be respected and that Courts should refrain from substituting their own opinion for that of competent administrative forums unless the action complained of is shown to be without lawful authority or in violation of mandatory statutory provisions. For ready reference the relevant paragraph of the judgment is reproduced as under:

In light of the above, the crux of this opinion is that the Chancellor is bound by the advice of the Chief Minister in view of Section 11(8) of the Act, and that the said section governs the powers exercised by the Chancellor under Section 11-A of the Act. Therefore, while deciding the revision petition of the appellant under Section 11-A ibid, the Chancellor ought to have sought the advice of the Chief Minister on the matter and would have been bound by the same. The Chancellor whilst deciding

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the revision himself has not acted in accordance with law, thus the view taken by the learned High Court in this regard in the impugned judgment is correct and does not warrant interference by this Court, in the light whereof, this appeal is dismissed.

Further reliance in this regard is placed on the judgments reported as University of Punjab v. Sardar Ali (1992 SCMR 1093) and Federation of Pakistan v. Muhammad Tariq Pirzada (1999 SCMR 2189), the judgments passed by this Court “ANOOSHA SHAIGAN Versus LAHORE UNIVERSITY OF MANAGEMENT SCIENCES through Chancellor and others” (PLD 2007 Lahore 568) in case of LUMS, “AOWN ABBAS BHATTI Versus FORMAN CHRISTIAN COLLEGE through its Rector etc.” (PLD 2015 Lahore 435) and “ARIF MAJEED MALIK and others versus BOARD OF GOVERNORS KARACHI, GRAMMER SCHOOL” (2004 CLC 1029).

Guided by the aforesaid jurisprudence, this Court has consciously avoided encroaching upon the administrative autonomy of the Lawrence College, Murree, confining its examination strictly to the question of procedural legality and violation of the Petitioners’ statutory and constitutional rights.

24. In furtherance of this objective, the Court, while seized of the dispute relating to the constitution of the Board of Governors, issued a series of directions to the Respondents to expedite the process of appointment of the **Principal of the College** in accordance with the provisions of Act. The record reveals that pursuant to repeated judicial directives, meetings of the Board were convened and the recruitment process was completed strictly under the relevant provisions of the Act. The culmination of this exercise resulted in the appointment of **Brigadier (Retired) Jawad Ahmed Zaka, SI(M)** as Principal of the College vide Notification dated 18.08.2025. The said appointment, being made with due process and under judicial supervision, is appreciated and reflects this Court’s consistent concern for ensuring continuity in the College’s leadership and protection of its academic standards.

25. However, despite progress in the matter of appointment of the Principal, the controversy pertaining to the **de-notification of the Petitioners**

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as **Members of the Board of Governors without affording them an opportunity of hearing** remained unresolved. The Petitioners have persistently contended that their removal was made in violation of Section 7(3) of the Act as well as Articles 4 and 10-A of the Constitution.

26. It is borne out from the record that this Court, on several occasions, directed the Respondents, particularly the Secretary, Higher Education Department, Government of the Punjab, to take necessary steps for resolution of the matter. **Dr. Farrukh Naveed, Secretary, Higher Education Department, Government of the Punjab, Lahore; appeared before this Court on 03.06.2025, and undertook** that a summary for inclusion of the Petitioners' names in the reconstituted Board would be sent to the Governor of Punjab through the Chief Minister. Despite these repeated assurances, no formal notification was issued reinstating the Petitioners. It was also brought to the Court's notice that the **official website** (<https://lawrencecollege.edu.pk>) of the College displayed the Petitioners' names in the "Governing Body" list, thereby acknowledging their association with the Board, yet, in administrative reality, their legal status remained unconfirmed.

27. It is important to mention here that the aforesaid undertaking given by the **Secretary**, Higher Education Department, being the **official head** of the Department under Rule 10 of the Punjab Government Rules of Business, 2011 (the "Rules of Business") cannot be resiled from. This Court has already strengthened the role of Secretary in the recent judgments passed in the case cited as *PIA Officers Cooperative Housing Society Limited versus Province of Punjab etc. (2024 CLC 947)* and "*Adnan Arif versus Province of Punjab, etc.*" (2025 CLC 550) [Rawalpindi Bench]. Therefore, non-inclusion of the Petitioners' name in the Board despite of aforesaid undertaking of the Secretary, is badly hit by the **doctrine of judicial estoppel** developed by this Court in the case of *JDW Sugar Mills Ltd. and others versus Province of Punjab and others (PLD 2017 Lahore 68)* wherein the scope and rationale behind the principle of judicial estoppel has been elaborated by observing that "it is fundamental duty of a Court to protect the integrity of the judicial

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process. A party cannot approbate and reprobate at the same time. When a party takes an inconsistent position in the same case or in a prior case, the principle of judicial estoppel should be applied”, which concept has been further developed by this Court in subsequent judgment reported as Mubashar Javed and others versus Province of Punjab and others (PLD 2022 Lahore 817) by holding that “under the doctrine of judicial estoppel a Court can stop a party from taking up contradictory stances if it is clearly inconsistent with the previous position, as a matter of fact in one case and is successful in that assertion, that party is estopped from asserting a different position on the same facts in the second case.”

28. It is also pertinent to mention here that in order to secure fundamental rights of the Petitioners; the Respondents have to adhere to their own Law and Policies issued from time to time which are binding on every citizen under the Doctrine of Sovereignty. This Court in the judgment titled Mst. Fatima Faryad etc. v. Government of Punjab etc. (2020 CLC 836) has held that:

“under the Doctrine of Sovereignty they are bound to adhere to their commitment in the light of dictum laid down in the case of Dewan Salman Fibber Ltd. and others v. Federation of Pakistan, through Secretary, M/o Finance and others (2015 PTD 2304) whereby this Court while laying emphasis on the importance of the Government adhering to severing commitments made by it, whether in the form of the statutory orders or notification issued by it or in the shape of policies announced by it held that “the commitments made on behalf of the Government of the Islamic Republic of Pakistan should neither be lightly disregarded nor deliberately ignored. The orderly development of a civilized society requires that citizens should be entitled to place implicit faith and confidence on representations which are made by or on behalf of the duly constituted governmental authorities. The importance of this underlies the sustained thrust towards the industrialization of the country in which both the nationals of Pakistan as well as nationals of foreign countries should have complete confidence that official commitments will be duly honored and acted upon in letter and spirit.”

Hence, this Court has taken judicial notice of the fact that despite clear statutory obligations and multiple opportunities, the Respondents continued to adopt a dilatory posture. Even today, learned Law Officer with Mr. Waqar

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Asad Khan, Assistant Director, Law HED and Waqas Ali, Assistant Law Officer, HED, has placed on record the Notification No.SO(BSP) W.P.2215/2024, dated 26.01.2026, which shows that in compliance of the directions of this Court, Summery for the Chief Minister containing certified copies of the orders has been initiated for information of Competent Authority. Added that now the Chief Minister has forwarded the relevant Summary to the Governor and inclusion of the Petitioners' names in the Board will *hopefully* be effected within a **fortnight**.

29. At this stage, learned counsel for the College has made available copy of the letter dated 04th October, 2025, duly endorsed by the Principal of the College, Brig. (Retd.) Jawad Ahmed Zaka, SI(M), and addressed to the Governor's Office which reveals that:

“It is intimated that on 19.08.2025, Law Officer appearing on behalf of Higher Education Department, pointed out that summary to consider inclusion of petitioners as member(s) of the Board has been moved in term of Section 4(I)(g) of the Act but final approval thereof from the cabinet division will take some time. That on last hearing the Honorable Court raised query with regard to the order dated 19.08.2025, and directed the Bursar alongwith Law Officer to submit fresh report in this behalf. Kindly provide information as to whether the summary has been moved or otherwise at the earliest, so that the honorable court be briefed regarding latest position and report be submitted in compliance of court order.”

The Court notes with dismay that a matter of purely administrative nature, which could have been resolved without recourse to litigation even with undertaking of the Secretary, Higher Education Department, has been allowed to linger unnecessarily for several months.

(VI) CONCLUSION

30. The conduct of the Respondents throughout the course of these proceedings depicts a *pattern of administrative indifference and lack of promptitude* in discharging their statutory obligations. The record manifests that despite clear and repeated directions issued by this Court, and notwithstanding the solemn undertakings given by the Secretary, Higher Education Department, the matter has been delayed and the inclusion of the

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Petitioners' names in the Board of Governors has not been accomplished, which constrained this Court to decide the issue to that extent in order to enforce rule of law, otherwise the matter would have been disposed of.

31. The statutory framework leaves no ambiguity. Under Section 4(2) of the Act the tenure of Members of the Board of Governors is prescribed as three (03) years, while Section 7(3) *ibid* expressly prohibits removal of any Member without first affording him an opportunity of being heard. These provisions, read conjointly with Articles 4 and 10-A of the Constitution, enshrine the fundamental right of every citizen to fair treatment and due process. The Petitioners were de-notified prior to completion of their statutory term and without adherence to these mandatory procedural safeguards, thereby rendering such action unsustainable in the eye of law.

32. Nonetheless, without delving into the disputed factual matrix or adjudicating upon the merits of the impugned notifications, this Court, in the spirit of judicial restraint and in consideration of the assurance given by the learned Law Officer, Secretary Higher Education Department, Mr. Waqar Asad Khan, Assistant Director, Law HED and Waqas Ali, Assistant Law Officer, HED, deems it appropriate to dispose of the present petitions with specific directions. Therefore, as per the aforesaid undertaking/submission that the summary for inclusion of the Petitioners namely **Musharaf Rasool Cyan, Lt. Col. (Retd.) Mumtaz Khan, Brig. (Retd.) Asmat Ullah Khan Niazi, Kashif Mateen Ansari, Mrs. Sadia Abbasi, Javed Sadiq Malik**, and **Hassan Farooq Meyer** — as Members of the Board of Governors of the College, has already been forwarded by the Chief Minister Punjab, to the Governor of the Punjab, and the necessary approval is expected within a fortnight, the Respondents are, **directed to complete all requisite formalities and issue the necessary notification** for inclusion of the Petitioners' names in the existing Board of Governors, strictly in accordance with law.

33. At this juncture, the learned Law Officer has drawn the attention of this Court to the order dated 10.09.2024, whereby operation of the Notification dated 19.07.2024 was suspended, which, if continued, may impede further

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proceedings in the matter. In order to remove any ambiguity and to facilitate implementation of the directions issued herein, the order dated 10.09.2024 that “*In the meanwhile, operation of the impugned order dated 19.07.2024 shall remain suspended*” **is recalled and stands vacated accordingly.**

34. Consequently, both these writ petitions are partly **allowed** in the terms stated hereinabove. The remaining reliefs sought in prayer(s), having become infructuous, are accordingly **declined**.

35. Compliance report shall be submitted to the Deputy Registrar (Judicial) of this Court within four (04) weeks for its placement before the Court for perusal and appropriate orders, if necessary.

36. Before parting with this judgment, the Court considers it appropriate to record its appreciation for the positive efforts of the State functionaries, particularly the Chief Minister Punjab, for forwarding the summary to the Governor for ensuring the appointment of the Board of Governor in accordance with law. These steps demonstrate an underlying commitment towards the welfare and progressive management of the College. The cooperative attitude of the Petitioners, who have confined their grievance to the issue of their removal without hearing and have shown readiness to mediate the matter in the broader interest of the institution, is also acknowledged and appreciated.

(JAWAD HASSAN)
JUDGE

Approved for reporting.

JUDGE

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